

7.

CASE #	CASE NAME	HEARING NAME
CVPS2600012	PEARCE VS ELLENZ	MOTION FOR TO COMPEL FURTHER RESPONSES TO REQUEST FOR PRODUCTION, SET TWO AS TO DEFENDANT ANTHONY ELLENZ

Tentative Ruling: No tentative ruling. Hearing is continued.

8.

CASE #	CASE NAME	HEARING NAME
CVPS2600012	PEARCE VS ELLENZ	MOTION FOR LEAVE TO AMEND 2ND AMENDED COMPLAINT OF KENT PEARCE BY KENT PEARCE

Tentative Ruling: No tentative ruling. Hearing is continued to 10.06.26 to be heard in conjunction with the Motion for Preferential Trial Setting.

Plaintiff failed to submit a copy of the proposed amended complaint. The Motion filed on 8.03.26 indicates that the proposed Third Amended Complaint was attached as Exhibit 3, but it is omitted from that Motion.

Plaintiff directed to file the proposed Third Amended Complaint with the court by 9.28.26. No further briefing shall be permitted.

9.

CASE #	CASE NAME	HEARING NAME
CVPS2508295	LITTLE VS ROCKET CLOSE, LLC	DEMURRER ON 3RD AMENDED COMPLAINT FOR BREACH OF CONTRACT/WARRANTY (OVER \$35,000) OF AUDREY LITTLE BY OAKTREE FUNDING CORPORATION

Tentative Ruling: A demurrer tests the legal sufficiency of the pleading and admits all material facts properly pleaded, but not contentions, deductions, or conclusions of fact or law. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The complaint is given a reasonable interpretation and read as a whole, with its parts in context. (*Id.*) A demurrer lies where the pleading fails to state facts sufficient to constitute a cause of action or is uncertain (CCP § 430.10.) Leave to amend should be granted if there is a reasonable possibility the defect can be cured, and the burden of showing that possibility rests with the plaintiff. (*Aubry v. Tri-City Hosp. Dist.* (1992) 2 Cal.4th 962, 967; *Blank*, supra, 39 Cal.3d at 318.)

Defendants Rocket Close, LLC and Rocket Companies, Inc demurrer to the 1st, 3rd, 4th, 6th-9th and 11th Causes of Action.

Rocket Close Only: 1st, 3rd, 4th, and 6th Causes of Action for Breach of Contract, Escrow Instructions, Fiduciary Duty and Professional Negligence:

Renewed Demurrer to the 1st, 3rd, and 4th Causes of Action:

Rocket Close demurs anew to the First (breach of contract), Third (breach of escrow instructions), and Fourth (breach of fiduciary duty) Causes of Action of the TAC,